

Court No. - 37

Case :- WRIT - C No. - 15991 of 2014

Petitioner :- Manisha Cold Storage (Pvt.) Ltd.

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. &
Another

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- Mahboob Ahmad

Hon'ble Vineet Saran,J.

Hon'ble Attau Rahman Masoodi,J.

Heard learned counsel for the petitioner as well as Sri Mahboob Ahmad, learned counsel for the respondents and have perused the record.

Primarily the dispute in the present writ petition is with regard to the electricity bill of the petitioner because of which the electricity line of the petitioner has been disconnected.

Sri Mahboob Ahmad, learned counsel for the respondents states that the petitioner has an alternative remedy of approaching the appropriate authority under Clause 6.5. of the U.P. Electricity Supply Code, 2005.

Sri B.C. Rai, learned counsel for the petitioner does not dispute this proposition.

As such, since the petitioner has an alternative remedy, which has not been availed by him, we would not be inclined to entertain this petition on merits.

However, considering the facts and circumstances of this case, we dispose of this petition with the direction that if the the petitioner approaches the appropriate authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005, the

authority shall consider and decide the dispute in accordance with law, as expeditiously as possible.

With the aforesaid observations/directions, this writ petition is finally disposed of. No order as to costs.

Order Date :- 14.3.2014

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(Attau Rahman Masoodi, J.) (Vineet Saran, J.)